

Cross-defendant Judds All-Trade Inc. demurs to the cross-complaint filed by Elite MD. (Judds is named in the cross-complaint as All-Trade Engineering & Design; the cross-complaint never mentions “Judds”. The demurrer acknowledges the name used in the cross-complaint as a dba of Judds, however, and apparently it is not disputed that the demurring party is the entity being sued in the cross-complaint as All-Trade. The Court will use that name for convenience.)

The demurrer is unopposed, and it is **sustained** with leave to amend.

Elite is the customer on a construction project to build out a medical office. The general contractor, Graves, sues Elite for collection. Elite brought this cross-complaint against Graves and several businesses alleged to be subcontractors or service providers to Graves, alleging in extremely vague and general terms that the construction featured delays and defects. All-Trade is mentioned in the cross-complaint only in the initial listing of parties, with the allegation that it “performed architectural, engineering and design services for Elite”. It is not alleged, however, that there existed any direct contractual relation between Elite and All-Trade.

All-Trade (and the other alleged subs) are sued only in Count 2 on a third-party-beneficiary contract theory, and in Count 3 for general negligence. As All-Trade correctly states, however, the cross-complaint is entirely devoid of the slightest factual allegation as to what duties any of these subs was contracted to perform, or what they are alleged to have done wrong or not done right. There is no factual allegation of what breaches of contract or duty Elite claims to have suffered. It appears that the relevant text of the cross-complaint was likely copied verbatim out of a formbook somewhere.

If Elite actually thinks it has any factual basis for a claim against All-Trade, it may amend to allege one. If it doesn’t, it should drop All-Trade as a party. A first amended cross-complaint may be filed and served by May 8. If none is filed by then, it will be taken that Elite is acknowledging that it has no viable claim against All-Trade.

13. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

This motion was dropped by the parties.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND HOUSING RENOVATION, LLC
TENTATIVE RULING:

Defendants Richmond Housing Renovation, LLC, Richmond Community Foundation and Richmond Community Foundation dba RCF Connects’ demurrer to the complaint is **sustained with leave to amend as to** Richmond Housing Renovation, LLC. As to Richmond Community Foundation

and Richmond Community Foundation dba RCF Connects, the demurrer is **sustained with leave to amend as to cause of action one and otherwise overruled**. Plaintiffs may file and serve a first amended complaint within 10 days from notice of entry of this ruling.

On May 23, 2024, Plaintiff Martha Cauch was injured when a cabinet fell off the wall and struck her while she was at the premises in Richmond. She is suing the moving defendants for (1) premises liability/dangerous condition of public property and (2) negligence. In cause of action four, her family members, Plaintiffs Laura Yamcauch and Amadeo Ocamp, witnessed the incident and are suing for infliction of emotional distress on a bystander.

Moving Defendants demur to causes of action one, two and four based upon the grounds that the claims fail to state facts sufficient to constitute a cause of action and are uncertain, Code of Civil Procedure section 430.10(e), (f). As the claims are all based upon essentially the same facts, Defendants' arguments apply to all three causes of action equally.

Here Plaintiffs have alleged a claim for premises liability and negligence based upon allegations that the Defendants negligently owned, operated, maintained, managed, entrusted and/or controlled the premises. (Comp. Prem L-1, Prem. L-4, Negligence ¶1.) Richmond Housing Renovation (RHR) argues that it has not owned the premises since September 7, 2016, and cannot be liable for the cabinet falling down since they did not own the property at the time. In support of this argument, RHR relies on requests for judicial notice.

RHR seeks judicial notice of three grant deeds for the property, showing transfer of ownership of the property in 2012 and 2016. (RJN ex. D-F.) "While courts cannot take judicial notice of factual representations in recorded documents, 'a court may take judicial notice of ... a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.' [Citations.]" (*Villa Zinfandel, LLC v. Bearman* (2025) 116 Cal.App.5th 848, 858.) The Court grants the request for judicial notice of the grant deeds for the property and in particular, the grant deed showing that RHR transferred title to the property to an individual on September 7, 2016. (RJN F.)

In general, "[a] defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control." [Citation.]" (*Lorenzen-Hughes v. MacElhenny, Levy & Co.* (1994) 24 Cal.App.4th 1684, 1688.) However, under the Restatement Second of Torts section 353 a "vendor of land may be held liable for a latent defect under section 353, *all* of its elements must exist: 1. that the vendor concealed or failed to disclose a condition which it knows about or has reason to know about, 2. which involves an unreasonable risk that the vendor understands or should realize, 3. which is unknown to the vendee or of which the vendee has no reason to know, and 4. which the vendor has reason to believe the vendee will not discover. Unless the vendor actively conceals the condition, the vendor may be held liable only until the vendee has had sufficient time to discover the condition and to take precautions." (*Id.* at 1689.)

Here, Plaintiffs' general allegations that RHR owned, operated, maintained, managed, and/or

controlled the property are insufficient when the grant deed shows RHR transferred their ownership in the property in 2016. Plaintiffs have not alleged any facts showing that despite transferring title, RHR continued to possess or control the property. The reasonable inference of the grant deeds and the allegations in the complaint is that RHR is being sued because they owned the premises in 2016. In that case, Plaintiffs need to allege facts showing that Restatement section 353 applies and they have not done so here.

In a footnote, Defendants note that it is unknown when the alleged dangerous condition was created, but that they have not owned it within the last 10 years, which is the statutory limitations period for latent defects. (Code of Civil Procedure section 337.715.) Defendants have not fully discussed their statute of limitations theory, however, the Court notes that Defendants RHR claims it last owned the property in September 2016 and Plaintiff filed this complaint in May 2025, which is less than 10-years since RHR owned the property.

Defendant RHR's demurrer is sustained with leave to amend.

As to Richmond Community Foundation (RCF) and Richmond Community Foundation dba RCF Connects, defendants argue that it is not a public entity, but a nonprofit public benefit corporation. The Court grants defendants' requests for judicial notice of the corporate filings (RJN ex. B and C) because they show how RCF was formed.

Plaintiffs have alleged the RCF (and RCF Connects) are public entities, but those allegations conflict with the judicially noticeable facts. Thus, Plaintiffs have not stated a claim against RCF for dangerous condition of public property. The demurrer to cause of action one is sustained with leave to amend on the failure to state a cause of action and also on uncertainty.

Defendants argue that RCF has not owned the property, but that fact is not found in the judicially noticeable documents. While Defendants have provided three grant deeds, there is no showing of the ownership of the premises since 2016.

As to the demurrer on uncertainty, the Court agrees that the complaint and judicially noticeable facts make it uncertain as to whether RCF is a public entity. As to the remaining uncertainty arguments, the Court finds that the complaint is not so uncertain that Defendants cannot respond to it.

15. 9:00 AM CASE NUMBER: C25-02582
CASE NAME: JOANNA GALVEZ VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: GALVEZ, JOANNA
TENTATIVE RULING:

Plaintiff's counsel, Robert Starr, moves to be relieved as counsel, asserting that he has lost contact with his client. He attempted contact via the phone number and email she had given him, and a certified letter to her last known address was returned.